

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

08/24/2026 in Department 44

**Motion to Compel FURTHER RESPONSE TO SPECIAL INTERROGATORIES FROM
DEFENDANT FCA US LLC, AND REQUEST FOR SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- 1) Plaintiffs’ Motion to Compel Further Responses to Requests for Production, Set One
- 2) Plaintiffs’ Motion to Compel Further Responses to Special Interrogatories, Set One

Tentative Ruling:

Plaintiffs’ Motion to Compel Further Responses to Requests for Production, Set One (“RFP”), is DENIED. As to RFP Nos. 45 and 46, FCA’s July 6, 2026 supplemental responses constitute adequate statements of compliance. (Code Civ. Proc. § 2031.220.) No further written response is required. This ruling is without prejudice to Plaintiffs seeking appropriate relief under Code of Civil Procedure section 2031.320 if FCA fails to produce documents in accordance with those statements of compliance. The motion is DENIED as to RFP Nos. 47 and 50-60.

Plaintiffs’ Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED in part and DENIED in part. The motion is GRANTED as to Special Interrogatory No. 10. Within 20 days of service of notice of this ruling, FCA US LLC shall serve a further verified response stating all facts presently known that support its contention that the Subject

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

Vehicle does not qualify for repurchase under the Song-Beverly Consumer Warranty Act. To the extent FCA invokes Code Civ. Proc. § 2030.230, it must satisfy the statutory prerequisites and identify the responsive records with sufficient specificity.

The motion is GRANTED as modified with respect to Special Interrogatory No. 26. Within 20 days of service of notice of this ruling, FCA shall serve a further verified response describing training provided by FCA US LLC from January 1, 2024 to the present to FCA personnel responsible for evaluating prelitigation California Song-Beverly repurchase or replacement requests. FCA need not respond on behalf of independently owned dealerships or other entities outside its possession, custody, or control, and may preserve specifically asserted attorney-client privilege or work-product objections as to genuinely protected material.

The motion is DENIED as to Special Interrogatory Nos. 47-58.

Neither party is awarded sanctions.

Plaintiffs to give notice.

I. Background

A. Factual Background

Plaintiffs Fernando Martinez Ramirez and Anet Medina Hernandez allege that on April 6, 2024, they purchased a 2022 Dodge Durango, VIN 1C4RDHDG8NC199614, for \$79,558.50 under warranties issued by FCA. (Compl., ¶ 16.) They allege defects and nonconformities arose during the warranty period and substantially impaired the vehicle's use, value, or safety. (Id. ¶ 17.) Plaintiffs allegedly presented the vehicle to an authorized FCA repair facility, but FCA was unable to conform it to warranty after a reasonable number of repair opportunities. (Id. ¶¶ 18-19.)

Plaintiffs further allege FCA failed promptly to provide restitution, that Plaintiffs sent FCA a written repurchase notice, and that FCA failed to offer restitution or replacement within 30 days. (Compl., ¶¶ 20-22.) Plaintiffs allege FCA's violation was willful and seek, among other relief, a civil penalty of up to twice their actual damages. (Id. ¶¶ 23, 27.)

B. Procedural Background

On March 20, 2026, Plaintiffs served their first set of requests for production and special interrogatories. FCA served verified responses on April 23, 2026. Plaintiffs sent a detailed meet-and-confer letter on June 5, 2026 and requested a response by June 24. The parties agreed in writing to extend Plaintiffs' deadline to move to compel further responses to July 6, 2026.

Plaintiffs filed the present motion on July 6, seeking further responses to RFP Nos. 45-47 and 50-60, and further responses to Special Interrogatory Nos. 10, 26 and 47-58, and monetary sanctions of \$2,115 against FCA and its counsel. At the time the motion was filed, Plaintiffs represented that FCA had neither responded to the June 5 meet-and-confer letter nor served supplemental responses.

Later on July 6, FCA sent a meet-and-confer response and, at approximately 6:21 p.m., transmitted verified supplemental responses to Plaintiffs' RFPs and special interrogatories. In

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

those supplemental responses, FCA agreed to comply in full with RFP Nos. 45 and 46. FCA thereafter made a second supplemental document production on July 15 consisting of 61 pages. FCA's opposition was filed August 11, and Plaintiffs filed their reply August 17. No subsequent production or supplemental response is reflected in the papers presently before the Court.

Plaintiffs reduced their sanctions request in reply from \$2,115 to \$1,870 based upon the actual time spent preparing the reply.

III. Discussion

A. Requests for Production

1. Nos. 45-46 (Similar-Vehicle Complaints and Warranty Repairs)

RFP No. 45 seeks documents sufficient to show complaints by owners of other 2022 Dodge Durango vehicles concerning the same or substantially similar conditions experienced by Plaintiffs' vehicle. RFP No. 46 similarly seeks documents sufficient to show substantially similar warranty repairs involving other 2022 Dodge Durango vehicles.

Plaintiffs demonstrated good cause for discovery appropriately confined to the same model year, make and model and the conditions reflected in Plaintiffs' repair history. Evidence concerning similar problems in other vehicles may bear upon both the existence of a defect and the manufacturer's knowledge. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154; see also *Jensen v. BMW of North America, LLC* (S.D.Cal. 2019) 328 F.R.D. 557, 562-564 [permitting discovery concerning the same year, make and model, limited to the defects reflected in the subject vehicle's repair records].)

The Court need not adjudicate FCA's original objections, however, because FCA served supplemental responses on July 6 stating that it had conducted a diligent search and reasonable inquiry and "will comply in full" with each request by producing all responsive documents within its possession, custody, or control concerning customer complaints and warranty-claim data involving the alleged conditions in Plaintiffs' repair history in vehicles of the same make, model and model year.

Those supplemental responses adequately state compliance under section 2031.220. Accordingly, no further written response is required.

The opposition nevertheless states that FCA was still "in the process of" providing documents located through its searches. If FCA has not produced the documents it promised to produce, that presents a compliance issue under Code Civ. Proc. § 2031.320, not a deficiency in the written statement of compliance under Code Civ. Proc. § 2031.310.

The present motion is therefore DENIED as to Nos. 45-46 without prejudice to Plaintiffs seeking relief under Code Civ. Proc. § 2031.320 if FCA has failed to complete the promised production.

2. RFP No. 47 (FCA's Preservation Efforts)

RFP No. 47 seeks all documents reflecting FCA's preservation efforts in this litigation, including preservation letters, the custodians receiving them, and measures undertaken to prevent destruction of information.

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

This is discovery directed principally at FCA's discovery process rather than the merits of Plaintiffs' Song-Beverly claim. Plaintiffs have not identified a specific deficiency in FCA's production, a missing category of documents, or evidence suggesting that FCA failed to preserve responsive material.

Jensen v. BMW of North America, LLC is particularly persuasive because it considered essentially the same request for information concerning preservation letters, custodians, and efforts to prevent deletion or destruction. The court characterized that inquiry as "discovery on discovery" and denied it where the plaintiff supplied no particularized reason to believe the defendant's discovery had been insufficient or deficient. (*Jensen, supra*, at 566.)

The same reasoning applies here. The request also potentially reaches litigation-hold materials implicating attorney-client privilege or work product.

Because Plaintiffs have not established good cause for this category in the first instance, the Court need not resolve the privilege objections. The present motion is therefore DENIED as to No. 47.

3. RFP Nos. 50-54 (Backup Systems and Procedures)

RFP Nos. 50-54 seek FCA's policies and procedures concerning backup of databases containing repurchase/replacement information, customer call logs and complaints, technical-assistance cases, and warranty-claim records.

These requests do not seek the underlying complaints, repair data, or warranty information relevant to Plaintiffs' Song-Beverly claims. Rather, they seek information about FCA's information-management architecture in order to evaluate whether FCA has adequately searched for discoverable material.

Without a concrete indication that relevant documents are missing or that FCA's search has been deficient, Plaintiffs have not established good cause for this collateral discovery. The requests therefore fall within the concerns identified in *Jensen, supra*.

The present motion is therefore DENIED as to Nos. 50-54.

4. RFP Nos. 55-59 (Retention and Destruction Policies)

RFP Nos. 55-59 seek FCA's document/data retention and destruction policies governing multiple categories of electronically stored information.

Plaintiffs rely in part on *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243. That case does not establish a general entitlement to retention-policy discovery whenever the completeness of another party's production is questioned. There, the reasonableness of a public agency's search for records was itself directly related to the merits of the pending Public Records Act enforcement action, and retention policies consequently bore directly on an issue to be adjudicated. (*Id.* at 258.) Here, by contrast, Plaintiffs' pleaded Song-Beverly claims concern FCA's warranty obligations, repair opportunities, repurchase duty, and alleged willfulness; the reasonableness of FCA's litigation-document search is not itself a pleaded merits issue.

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

Plaintiffs' reliance on *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103-1104 for discovery of retention policies is also misplaced. Those pages address the vehicle's nonconformity and repair opportunities. Oregel does discuss a manufacturer's internal policies in connection with willfulness at pages 1104-1105, but it does not concern litigation-document retention policies.

Absent some concrete basis to believe relevant material has not been preserved or produced, good cause has not been shown for these RFPs. The present motion is therefore DENIED as to Nos. 55-59.

5. RFP No. 60 — Subject-Vehicle Destruction Logs

RFP No. 60 is narrower than the preceding requests because it seeks destruction logs specifically reflecting documents or data concerning the Subject Vehicle. Nevertheless, Plaintiffs identify no gap in the vehicle-specific production and no evidence that FCA destroyed or failed to preserve Subject Vehicle information.

On the present record, the request remains an inquiry into the adequacy of FCA's discovery process unsupported by a particularized reason to believe evidence was destroyed. The request is therefore DENIED, without prejudice to appropriately targeted discovery if Plaintiffs later identify facts suggesting that responsive Subject Vehicle information was lost or destroyed.

B. Special Interrogatories

1. Special Interrogatory No. 10 (Facts Supporting FCA's Repurchase Position)

Special Interrogatory No. 10 asks FCA, if it contends the Subject Vehicle does not qualify for repurchase under the Song-Beverly Act, to state all facts supporting that contention.

FCA responds that the vehicle did not exhibit covered defects substantially impairing its use, value, or safety that remained unrepaired after a reasonable number of attempts, and that an authorized dealership was able to conform the vehicle to warranty on each occasion. FCA then invokes Code Civ. Proc. § 2030.230 and refers generally to numerous categories of documents, including repair records, a Repair Order Detailed Report, a Vehicle Information Detail Report, the sales contract, dealership communications, Customer Assistance Inquiry Records, and the warranty booklet.

The answer states FCA's ultimate contention but does not provide the facts supporting it. Its invocation of Code Civ. Proc. § 2030.230 is also inadequate. FCA neither establishes that deriving the answer requires a compilation from business records for which the burden is substantially the same for both parties nor identifies the responsive portions of the records with sufficient specificity. The generalized reference to multiple categories of records leaves Plaintiffs to determine for themselves which facts FCA contends establish that the vehicle was successfully repaired.

Deyo specifically rejects this type of broad reference to documents. (*Deyo, supra*, at 783-785.) A further verified answer is therefore required.

The request is GRANTED. FCA is ordered to state all facts presently known that support its contention that the Subject Vehicle does not qualify for repurchase. If FCA elects to invoke Code

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

Civ. Proc. § 2030.230 as to information legitimately obtainable from business records, it must comply with that statute and specifically identify the records from which the answer can be derived.

2. Special Interrogatory No. 26 (Training Regarding Repurchase Requests)

Special Interrogatory No. 26 asks FCA to “[d]escribe all training that YOU provided from 2024 to the present regarding how to evaluate a pre-litigation repurchase request under the Song-Beverly Act.”

FCA responds solely with objections based on overbreadth, burden, relevance, the definition of “YOU,” privilege, and work product. In opposition, FCA argues that it “effectively” answered the interrogatory by previously producing its Dealer Policy Manual, Warranty Administration Manual, and Customer Assistance Center materials.

These objections do not justify refusing to answer entirely. Plaintiffs allege a willful failure to provide Song-Beverly remedies. (Compl., ¶ 23.) A manufacturer’s policies concerning compliance with the Act are relevant to whether its failure to repurchase was reasonable and in good faith. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 136; *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1104-1105.) Training provided to personnel who actually evaluate California repurchase claims may likewise bear on that issue.

The interrogatory as written, however, uses Plaintiffs’ broad definition of “YOU” and is not expressly confined to the FCA personnel whose conduct could bear upon FCA’s evaluation of repurchase requests.

The request is therefore GRANTED, as narrowed: FCA shall provide a further verified answer describing training provided by FCA US LLC, from January 1, 2024 to the present, to FCA personnel responsible for evaluating prelitigation California Song-Beverly repurchase or replacement requests. The interrogatory need not be answered on behalf of independently owned dealerships or other entities outside FCA’s control. FCA may preserve a specific attorney-client or work-product objection as to genuinely privileged communications but must answer as to nonprivileged training.

The prior production of manuals does not substitute for a responsive interrogatory answer where FCA did not invoke Code Civ. Proc. § 2030.230 and did not identify the portions of those materials that answer the question. (*Deyo, supra*, at 783-784.)

3. Special Interrogatory Nos. 47-48 (Preservation and Search Efforts)

Special Interrogatory No. 47 seeks a description of FCA’s preservation efforts in this litigation, including preservation letters, custodians, and steps undertaken to prevent deletion or destruction. No. 48 seeks a description of FCA’s efforts to search for responsive documents, including the sources searched, methods employed, search terms, and custodians.

The federal decision upon which FCA relies, *Jensen v. BMW of North America, LLC* (S.D.Cal. 2019) 328 F.R.D. 557, is persuasive here because the discovery considered there is essentially

verbatim the discovery Plaintiffs propounded here. *Jensen* rejected deposition categories asking for the defendant's preservation letters, custodians, preservation steps, sources searched, search methods, search terms, and custodians. The court held such "discovery on discovery" should not be permitted without some indication that the responding party's discovery was deficient. (*Id.* at 566.)

Plaintiffs have not supplied such an indication here. The reply asserts that Plaintiffs' counsel has seen varying FCA productions in other Song-Beverly cases, but no declaration or other evidence identifies a concrete gap in FCA's production in this case. The mere possibility that additional responsive information might exist does not justify discovery into the opposing party's litigation-discovery process.

Nos. 47-48 is therefore DENIED.

4. Special Interrogatory Nos. 49-54 (Persons Responsible for FCA's Electronic Networks)

Nos. 49-54 seek identification of the persons responsible for operating, maintaining, expanding, archiving, and maintaining networks in which FCA stores customer call logs, Subject Vehicle repurchase analyses, repurchase policies, technical-assistance cases, consumer complaints, and warranty-claim records.

These interrogatories are one step further removed from the merits than Nos. 47-48. They do not ask for substantive customer complaints, warranty data, repurchase analyses, or policies relevant to Plaintiffs' claim; they seek identification of information-technology personnel responsible for the systems where such information resides.

Plaintiffs identify no specific production deficiency for which identification of FCA's network administrators is necessary. On this record, the requests constitute collateral discovery into FCA's discovery infrastructure and is DENIED.

5. Special Interrogatory Nos. 55-58 (Retention and Destruction Policies)

Nos. 55-58 seek FCA's document/data retention and destruction policies governing repurchase-related records, customer call logs, technical-assistance cases, and warranty-claim records.

Plaintiffs principally argue that these policies are necessary to assess whether FCA preserved all responsive evidence. *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 258 recognized that records-retention policies may be discoverable where they bear upon the reasonableness of a search. But *County of San Benito* arose in a Public Records Act enforcement action in which the reasonableness and completeness of the public agency's search for requested records was directly germane to the merits. It does not establish that document-retention discovery is routinely relevant in an ordinary civil action without a particularized reason to question the opposing party's preservation or production.

**2025CUBC050885: FERNANDO MARTINEZ RAMIREZ, et al. vs FCA US LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

Here, the operative pleading concerns FCA's warranty, repair, and repurchase obligations and alleged willfulness. Plaintiffs have not identified a concrete basis to believe responsive records were destroyed or omitted from FCA's production. The requests therefore remain collateral "discovery on discovery" of the type cautioned against in *Jensen, supra*, at 566.

Plaintiffs' reliance on *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103-1104 for a proposition concerning document-retention practices is misplaced. That case involved repair attempts and the consumer's obligation to present the vehicle for repair. Although *Oregel* discusses internal manufacturer policies in its subsequent willfulness analysis (*Id.* at 1104-1105), it does not address litigation-document retention or discovery obligations.

Requests regarding Nos. 55-58 are therefore DENIED.

C. Sanctions

Code Civil Procedure at sections 2030.300, subdivision (d) and 2031.310, subdivision (h) ordinarily requires a monetary sanction against a party or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the party acted with substantial justification or other circumstances make sanctions unjust. Here, given the mixed results of the motions, the Court finds that neither party is entitled to sanctions.